



**Federal Communications Commission
Washington, DC 20554**

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SMALL ENTITY COMPLIANCE GUIDE

**Amendments to Part 52 of the Commission's Rules and
Georouting Requirements for Wireless 988 Calls
(Implementation of the National Suicide Hotline Act of 2018)
WC Docket No. 18-336**

**FCC 24-111, Released October 18, 2024
FCC 21-119, Released November 19, 2021
FCC 20-100, Released July 17, 2020**

In accordance with Section 212 of the Small Business Regulatory Enforcement Fairness Act of 1996, this Small Entity Compliance Guide (Guide) is intended to help small entities—small businesses, small organizations (non-profits), and small governmental jurisdictions—comply with the rules adopted in the above-referenced Federal Communications Commission (FCC or Commission) rulemaking dockets. This Guide is not intended to replace or supersede these rules, but to facilitate compliance with the rules. Although we have attempted to cover all parts of the rules that might be especially important to small entities, the coverage may not be exhaustive. This Guide cannot anticipate all situations in which the rules apply. Furthermore, the Commission retains the discretion to adopt case-by-case approaches, where appropriate, that may differ from this Guide. Any decision regarding a particular small entity will be based on the statute and any relevant rules.

In any civil or administrative action against a small entity for a violation of rules, the content of the Guide may be considered as evidence of the reasonableness or appropriateness of proposed fines, penalties or damages. Interested parties are free to file comments regarding this Guide in the above referenced docket and the appropriateness of its application to a particular situation. The Commission will then consider whether the recommendations or interpretations in the Guide are appropriate in that situation. The Commission may decide to revise this Guide without public notice to reflect changes in its approach to implementing a rule, or it may clarify or update the text of the Guide. Please direct comments and recommendations, or requests for further assistance, to the FCC's Consumer Center:

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I. OBJECTIVES OF THE PROCEEDING

This Small Entity Compliance Guide (Guide) summarizes rules adopted by the Federal Communications Commission (Commission) in the following orders that were released between July 2020 and October 2024, in its efforts to improve access to the 988 Suicide & Crisis Lifeline (988 Lifeline or Lifeline): 1) *Implementation of the National Suicide Hotline Improvement Act of 2018*, Third Report and Order and Third Further Notice of Proposed Rulemaking (*988 Georouting Third Report and Order*) adopted October 17, 2024;¹ 2) *Implementation of the National Suicide Hotline Improvement Act of 2018*, Second Report and Order (*Text-to-988 Second Report and Order*) adopted November 18, 2021;² and 3) *Implementation of the National Suicide Hotline Improvement Act of 2018*, First Report and Order (*988 First Report and Order*) adopted July 16, 2020.³

The 988 Lifeline consists of a national network of over 200 crisis centers that provide 24/7 confidential support for people experiencing emotional, suicidal, and substance use crises.⁴ In the July 2020 *988 First Report and Order*, the Commission adopted rules establishing 988 as the three-digit dialing code for the national suicide prevention and mental health crisis hotline and required all telecommunications carriers, interconnected Voice over Internet Protocol (VoIP) providers, and one-way VoIP providers to make any network changes necessary to ensure that people were able to dial 988 to reach the Lifeline.⁵ The Commission also required all covered providers to implement 10-digit dialing in areas that used 7-digit dialing and had 988 assigned as a central office code.⁶

In November 2021, the Commission adopted rules in the *Text-to-988 Second Report and Order* requiring covered text providers to route covered 988 text messages to the Lifeline's 10-digit access number, currently 1-800-273-8255.⁷ The Wireline Competition Bureau (Bureau) subsequently granted a waiver to allow covered text providers to route covered 988 text messages to the 988 Lifeline using the short code protocol without translation to the Lifeline's current toll free access number.⁸

The majority of calls to the 988 Lifeline are made from wireless phones. However, the 988 Lifeline's system was originally designed to route calls to crisis centers based on a caller's area code and exchange, which may not correspond to the caller's physical location. The *988 Georouting Third Report and Order*, released in October 2024, built upon the Commission's prior efforts to help ensure that people in distress can call or text the 988 Lifeline to receive the vital support they need,⁹ and adopted additional

¹ *Implementation of the National Suicide Hotline Act of 2018*, WC Docket No. 18-336, Third Report and Order and Third Further Notice of Proposed Rulemaking, FCC 24-111, 2024 WL 4565596 (October 18, 2024) (*988 Georouting Third Report and Order*).

² *Implementation of the National Suicide Hotline Improvement Act of 2018*, WC Docket No. 18-336, Second Report and Order, 36 FCC Rcd 16901, 16903, para. 2 (2021) (*Text-to-988 Second Report and Order*).

³ *Implementation of the National Suicide Hotline Improvement Act of 2018*, WC Docket No. 18-336, Report and Order, 35 FCC Rcd 7373, 7385-92, 7395-97, paras. 28-36 and 41-45 (2020) (*988 First Report and Order*).

⁴ See 988 Suicide & Crisis Lifeline, About the Lifeline, <https://988lifeline.org/about/> (last visited Feb. 27, 2025).

⁵ *988 First Report and Order*, 35 FCC Rcd at 7385-92, 7395-97, paras. 28-36 and 41-45.

⁶ *Id.* at 7398, para. 48. The term "central office code" refers to the second three digits (NXX) of a ten-digit telephone number in the form NXX-NXX-XXXX, where N represents any one of the numbers 2 through 9 and X represents any one of the numbers 0 through 9. 47 CFR § 52.7(c).

⁷ *Text-to-988 Second Report and Order*, 36 FCC Rcd at 16903, para. 2.

⁸ *Implementation of the National Suicide Hotline Improvement Act of 2018*, WC Docket No. 18-336, Order, 37 FCC Rcd 6060 (WCB 2022).

⁹ *988 Georouting Third Report and Order* at *4, paras. 11-12.

rules to facilitate access to the 988 Lifeline's critical local intervention services by requiring Commercial Mobile Radio Service (CMRS) providers to implement a georouting solution for 988 calls.

The georouting rules adopted in the *988 Georouting Third Report and Order* enable the 988 Lifeline to route wireless calls to crisis centers based on the geographic area associated with the origin of a 988 call rather than by area code and exchange, thereby helping connect callers to life-saving local resources. The *988 Georouting Third Report and Order* also amended the Commission's 988 voice and texting rules to provide CMRS providers flexibility in implementing georouting solutions that may require broader routing parameters by allowing routing of 988 calls and texts to the Lifeline without translation to the toll free access number.

II. COMPLIANCE REQUIREMENTS

The Commission adopted compliance requirements and definitions in the *988 First Report and Order*, *Text-to-988 Second Report and Order*, and *988 Georouting Third Report and Order*, which can be found at 47 CFR §§ 52.000, 52.201, 52.202, as detailed below.

A. 988 Call Implementation and Routing (47 CFR § 52.200(b)-(d)) (Adopted in the 988 First Report and Order¹⁰ and Amended in the 988 Georouting Third Report and Order¹¹)

All covered providers are required to complete 10-digit dialing implementation in areas that use 7-digit dialing and have assigned 988 as a central office code, and to complete all changes necessary in their systems to implement the designation of the 988 dialing code. Covered providers must also transmit all calls initiated by an end user dialing 988 to the national suicide prevention and mental health crisis hotline system maintained by the Assistant Secretary for Mental Health and Substance Use and the Secretary of Veterans Affairs.

B. 988 Text Implementation and Routing (47 CFR § 52.201(a)-(b)) (Adopted in the Text-to-988 Second Report and Order¹² and Amended in the 988 Georouting Third Report and Order¹³)

CMRS providers are required, to the extent that they offer Short Message Service (SMS), to allow access by any other covered text provider to the capabilities necessary for transmission of 988 text messages originating on such other covered text providers' application services. All covered text providers must route a covered 988 text message to the national suicide prevention and mental health crisis hotline system maintained by the Assistant Secretary for Mental Health and the Secretary of Veterans Affairs.

C. Georouting Requirements for Wireless 988 Calls (47 CFR § 52.202(a)) (Adopted in the 988 Georouting Third Report and Order¹⁴)

All CMRS providers must have the capability to provide georouting data with 988 calls to the Lifeline Administrator in a format that is compatible with the Lifeline's routing platform, to allow routing of the 988 call by the Lifeline Administrator to the appropriate crisis center based on the geographic area where the handset is located at the time the 988 call is initiated. CMRS providers must provide georouting data, when available, with 988 calls to the Lifeline Administrator sufficient to allow routing of

¹⁰ *988 First Report and Order*, 35 FCC Rcd at 7395-400, 7404, paras. 42-50, 57.

¹¹ *988 Georouting Third Report and Order* at *19, para. 53.

¹² *Text-to-988 Second Report and Order*, 36 FCC Rcd at 16921, 16928-29, paras. 34, 47-48.

¹³ *988 Georouting Third Report and Order* at *19, para. 53.

¹⁴ *Id.* at *6, *10, paras. 17, 28.

the 988 call by the Lifeline Administrator to the appropriate crisis center based on the geographic area where the handset is located at the time the 988 call is initiated.

D. Applicability of Georouting Requirements for Wireless 988 Calls (47 CFR § 52.202(b)) (Adopted in the 988 Georouting Third Report and Order)

The georouting requirements for wireless 988 calls apply to CMRS providers, excluding mobile satellite service (MSS) operators, to the extent that they offer real-time, two way switched voice service that is interconnected with the public switched network; and use an in-network switching facility that enables the provider to reuse frequencies and accomplish seamless hand-offs of subscriber calls. These requirements are applicable to entities that offer voice service to consumers by purchasing airtime or capacity at wholesale rates from CMRS licensees. The adopted georouting requirements do not apply to 988 calls transmitted using roaming capabilities.

E. Definitions (47 CFR § 52.200; 47 CFR § 52.201; 47 CFR § 52.202)

The Commission adopted several definitions in this proceeding for purposes of the implementation requirements for 988 calls:

- *Covered provider* (47 CFR § 52.200(e)(1)) – Any telecommunications carrier, interconnected VoIP provider, or provider of one-way VoIP.
- *One-way VoIP* (47 CFR § 52.200(e)(2)) – A service that: enables real-time, two-way voice communications; requires a broadband connection from the user's location; requires internet protocol-compatible customer premises equipment; and permits users generally to receive calls that originate on the public switched telephone network or to terminate calls to the public switched telephone network. One-way VoIP does not include any service that is an interconnected VoIP service.
- *988 text message* (47 CFR § 52.201(c)) – A message consisting of text, images, sounds, or other information that is transmitted to or from a device that is identified as the receiving or transmitting device by means of a 10-digit telephone number, N11 service code, or 988. A 988 text message includes and is not limited to a SMS message and a multimedia message service (MMS) message.
 - A 988 text message does not include a real-time, two-way voice or video communication; or a message sent over an IP-enabled messaging service to another user of the same messaging service, except in relation to access to SMS networks for 988 text messages, as discussed in section II.B above.
- *Covered 988 text message* (47 CFR § 52.201(c)) – A 988 text message in SMS format and any other format that the Bureau has determined must be supported by covered text providers.
- *Covered text providers* (47 CFR § 52.201(c)) – All CMRS providers as well as all providers of interconnected text messaging services that enable consumers to send text messages to and receive text messages from all or substantially all text-capable U.S. telephone numbers, including through the use of applications downloaded or otherwise installed on mobile phones.
- *Commercial mobile radio service (CMRS)* (47 CFR § 52.202(d)) – A mobile service that is: provided for profit (i.e., with the intent of receiving compensation or monetary gain), an interconnected service, and available to the public, or to such classes of eligible users as to be effectively available to a substantial portion of the public; or the functional equivalent of such a mobile service.

- A variety of factors may be evaluated to make a determination whether the mobile service in question is the functional equivalent of a CMRS, including:
 - Consumer demand for the service to determine whether the service is closely substitutable for a commercial mobile radio service;
 - Whether changes in price for the service under examination, or for the comparable CMRS, would prompt customers to change from one service to the other; and
 - Market research information identifying the targeted market for the service under review.
- Unlicensed radio frequency devices under part 15 of the Commission's rules are excluded from this definition of CMRS.
- *Georouting data* (47 CFR § 52.202(d)) – Location data generated from cell-based location technology that is aggregated to a level that will not identify the location of the cell site or base station receiving the 988 call or otherwise identify the precise location of the handset.
- *Lifeline Administrator* (47 CFR § 52.202(d)) – The Lifeline Administrator controls the 988 call routing platform pursuant to contract with the Substance Abuse Mental Health Services Administration.
- *Nationwide CMRS provider* (47 CFR § 52.202(d)) – A CMRS provider whose service extends to a majority of the population and land area of the United States
- *Non-nationwide CMRS provider* (47 CFR § 52.202(d)) – Any CMRS provider other than a nationwide CMRS provider.

III. RECORDKEEPING AND REPORTING REQUIREMENTS

The Commission's actions in the *988 First Report and Order*, *Text-to-988 Second Report and Order*, and *988 Georouting Third Report and Order* did not create any new recordkeeping or reporting requirements.

IV. IMPLEMENTATION DATES

The rules adopted in the *988 First Report and Order* became effective on October 16, 2020, and compliance was required by July 16, 2022. The rules adopted in the *Text-to-988 Second Report and Order* became effective on February 4, 2022, and compliance was required by July 16, 2022. The rules adopted in the *988 Georouting Third Report and Order* became effective on December 12, 2024. Compliance for Nationwide CMRS providers was required by January 13, 2025. Non-Nationwide CMRS providers must comply by December 14, 2026.

V. INTERNET LINKS

A copy of the *988 First Report and Order* is available at: <https://docs.fcc.gov/public/attachments/FCC-20-100A1.pdf>.

A copy of the Federal Register Summary of the *988 First Report and Order* is available at: <https://www.govinfo.gov/content/pkg/FR-2020-09-16/pdf/2020-16908.pdf>.

A copy of the *Text-to-988 Second Report and Order* is available at: <https://docs.fcc.gov/public/attachments/FCC-21-119A1.pdf>.

A copy of the Federal Register Summary of the *Text-to-988 Second Report and Order* is available at: <https://www.govinfo.gov/content/pkg/FR-2022-01-05/pdf/2021-27878.pdf>.

A copy of the *988 Georouting Third Report and Order* is available at: <https://docs.fcc.gov/public/attachments/FCC-24-111A1.pdf>.

A copy of the Federal Register Summary of the *988 Georouting Third Report and Order* is available at: <https://www.govinfo.gov/content/pkg/FR-2024-11-12/pdf/2024-25912.pdf>.